

25STCV17113 25STCV17113

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-06-26

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25STCV17113

ANNUNZIATA CRUPI vs EDWARD B MORETON, JR., et al.

June 26,
2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling - Motion for Attorney

Fees

I.

Background

On June 12, 2025, Plaintiff Annunziata Crupi ("Plaintiff") filed a complaint against Defendants Edward B. Moreton Jr., Randolph M. Hammock, University of Southern California, Valter Longo, Sebastian Brandhorst, Wendy Snaer, Gregory Wong, Heather Cox, L-Nutra, Marta Alcumbrac, Howard Smith, Peter Walrod, Candice Zee, Mark Schaeffer, and Does 1 through 100 alleging twenty-three causes of action: (1) civil conspiracy; (2) civil conspiracy to persecute, isolate, and defame; (3) constructive eviction; (4) violation of civil rights via affirmative acts; (5) infliction of public humiliation; (6) retaliation; (7) discrimination; (8) defamation; (9) tortious interference with contract; (10) tortious interference with prospective economic advantage; (11) invasion of privacy; (12) civil harassment; (13) abuse of process; (14) fraud in arbitration; (15) economic coercion and duress; (16) declaratory and injunctive relief; (17) loss of consortium and familial association; (18) violation of constitutional right to travel; (19) violation of right to

intimate association and family life; (20) violation of right to reproductive liberty and family formation; (21) unfair business practices; (22) intentional infliction of emotional distress; and (23) negligent infliction of emotional distress

On March 16, 2026, Defendant Mark Schaeffer (hereinafter “Schaeffer”) filed an anti-SLAPP motion to strike Plaintiff’s complaint.

On May 1, 2026, the Court granted the motion.

On May 15, 2026, Schaeffer filed the instant motion for attorney’s fees.

On June 3, 2026, Plaintiff filed her reply.

On June 8, 2026, Schaeffer filed his reply.

II.

Discussion

Cal. Code of

Civ. Proc. § 425.16(c)(1) provides, in pertinent part, that in any action subject to a special motion to strike, “a prevailing defendant on a special motion to strike shall be entitled to recover that defendant’s attorney’s fees and costs.” (CCP § 425.16(c)(1).)

This

fee-shifting provision is “broadly construed as to effectuate the legislative purpose of reimbursing the prevailing defendant for expenses incurred in extracting herself from a baseless lawsuit.” (Wanland v. Law Offices of Mastagni, Holstedt & Chiurazzi (2006) 141 Cal.App.4th 15, 45.)

Fee-shifting is mandatory if the defendant prevails upon a special motion to strike. (Resolute Forest Products, Inc. v. Greenpeace International (N.D. Cal. (2017) 302 F.Supp.3d 1005, 1026.)

Plaintiff’s

Opposition

As a

preliminary matter, the Court addresses Plaintiff’s various declarations filed

with her opposition, totaling over 600 pages of documents, including, inter alia, various mailing records, LinkedIn searches, correspondence with Plaintiff's landlord, and pages-long narratives of Plaintiff's personal history. (See generally Crupi Declarations.) Pursuant to Cal. Evid. Code § 350, no evidence is admissible except relevant evidence. (See Evid. Code § 350.) The court also retains discretion to exclude evidence if its probative value is substantially outweighed by the probability that its admission will necessitate undue consumption of time or create substantial danger of confusing the issues. (Id. at § 352.) Furthermore, California appellate courts have firmly established that it is not the function of the court to comb the record looking for the evidence or absence of evidence to support a party's argument, of which the Court has put Plaintiff on notice. (See *Becerra v. McClatchy Co.* (2021) 69 Cal.App.5th 913.) Accordingly, the Court disregards these declarations.

Plaintiff

further objects to "escalating litigation" on grounds of her "severe financial hardship," "escalating debt and economic collapse," and "inability to sustain abusive litigation." (See generally Opposition.) However, an award of attorney's fees on an anti-SLAPP is mandatory. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122.) A trial court has no discretion to deny the award on the basis of financial hardship. (*Paulus v. Bob Lynch Ford, Inc.* (2006) 139 Cal.App.4th 659.) A court may only determine if the amount is reasonable. (Ibid.)

Analysis

Here,

Plaintiff's complaint arises from allegations of misconduct regarding Schaeffer's official actions as counsel in *Crupi v. USC et al.* (See May 1, 2026, Order.) The Court granted Schaeffer's anti-SLAPP motion on May 1, 2026. (Ibid.) Schaeffer is therefore entitled to attorney's fees and costs pursuant to CCP § 425.16(c)(1).

Schaeffer

seeks attorney's fees in the total amount of \$57,035. (See Motion at 3:3-11.) Notably, Plaintiff's complaint was extensive, involving 23 causes of action. (See generally Complaint.) Anti-SLAPP motions are "complex and time consuming." (*Ketchum*, supra, at 1139.) Here, Plaintiff's counsel states that her reasonably hourly rate is \$850. (Stone Decl. ¶ 7.) Counsel has been practicing law since 1983. (Ibid.) Counsel also provides a table of

billing entries as Exhibit 2 to her declaration. (Id. at Exh. 2.) These entries show 67.1 hours expended. (Ibid.)

Given

Plaintiff's extensive complaint, supplemental declarations, and objections, including hundreds of pages to review and analyze, the Court finds this amount reasonable.

The Court

also finds the hourly rate reasonable.

III. Conclusion

Based on the foregoing, the Court GRANTS Schaeffer's motion for attorney's fees. Attorney's fees are awarded for Schaeffer and defense counsel and against Plaintiff in the total amount \$57,035.

Schaefer to give
notice.

25STCV17113

ANNUNZIATA CRUPI vs EDWARD B MORETON, JR., et al.

June 26,
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Van Nuys Courthouse East, Dept. I

Tentative Ruling - Motion for Attorney
Fees

I.

Background

On June 12, 2025, Plaintiff Annunziata Crupi ("Plaintiff")
filed a complaint against Defendants Edward B. Moreton Jr., Randolph M.
Hammock, University of Southern California, Valter Longo, Sebastian Brandhorst,

Wendy Snaer, Gregory Wong, Heather Cox, L-Nutra, Marta Alcumbrac, Howard Smith, Peter Walrod, Candice Zee, Mark Schaeffer, and Does 1 through 100 alleging twenty-three causes of action: (1) civil conspiracy; (2) civil conspiracy to persecute, isolate, and defame; (3) constructive eviction; (4) violation of civil rights via affirmative acts; (5) infliction of public humiliation; (6) retaliation; (7) discrimination; (8) defamation; (9) tortious interference with contract; (10) tortious interference with prospective economic advantage; (11) invasion of privacy; (12) civil harassment; (13) abuse of process; (14) fraud in arbitration; (15) economic coercion and duress; (16) declaratory and injunctive relief; (17) loss of consortium and familial association; (18) violation of constitutional right to travel; (19) violation of right to intimate association and family life; (20) violation of right to reproductive liberty and family formation; (21) unfair business practices; (22) intentional infliction of emotional distress; and (23) negligent infliction of emotional distress

On March 16, 2026, Defendant Marta Alcumbrac (hereinafter “Alcumbrac”) filed an anti-SLAPP motion to strike Plaintiff’s complaint.

On May 4, 2026, the Court granted the motion.

On May 20, 2026, Schaeffer filed the instant motion for attorney’s fees.

On June 3, 2026, Plaintiff filed her reply.

On June 8, 2026, Alcumbrac filed her reply.

II.

Discussion

Cal. Code of

Civ. Proc. § 425.16(c)(1) provides, in pertinent part, that in any action subject to a special motion to strike, “a prevailing defendant on a special motion to strike shall be entitled to recover that defendant’s attorney’s fees and costs.” (CCP § 425.16(c)(1).)

This

fee-shifting provision is “broadly construed as to effectuate the legislative purpose of reimbursing the prevailing defendant for expenses incurred in

extracting herself from a baseless lawsuit.” (Wanland v. Law Offices of Mastagni, Holstedt & Chiurazzi (2006) 141 Cal.App.4th 15, 45.) Fee-shifting is mandatory if the defendant prevails upon a special motion to strike. (Resolute Forest Products, Inc. v. Greenpeace International (N.D. Cal. (2017) 302 F.Supp.3d 1005, 1026.)

Plaintiff's
Opposition

As a preliminary matter, the Court addresses Plaintiff's various declarations filed with her opposition, totaling over 600 pages of documents, including, inter alia, various mailing records, LinkedIn searches, correspondence with Plaintiff's landlord, and pages-long narratives of Plaintiff's personal history. (See generally Crupi Declarations.) Pursuant to Cal. Evid. Code § 350, no evidence is admissible except relevant evidence. (See Evid. Code § 350.) The court also retains discretion to exclude evidence if its probative value is substantially outweighed by the probability that its admission will necessitate undue consumption of time or create substantial danger of confusing the issues. (Id. at § 352.) Furthermore, California appellate courts have firmly established that it is not the function of the court to comb the record looking for the evidence or absence of evidence to support a party's argument, of which the Court has put Plaintiff on notice. (See Becerra v. McClatchy Co. (2021) 69 Cal.App.5th 913.) Accordingly, the Court disregards these declarations.

Plaintiff further objects to “escalating litigation” on grounds of her “severe financial hardship,” “escalating debt and economic collapse,” and “inability to sustain abusive litigation.” (See generally Opposition.) However, an award of attorney's fees on an anti-SLAPP is mandatory. (Ketchum v. Moses (2001) 24 Cal.4th 1122.) A trial court has no discretion to deny the award on the basis of financial hardship. (Paulus v. Bob Lynch Ford, Inc. (2006) 139 Cal.App.4th 659.) A court may only determine if the amount is reasonable. (Ibid.)

Analysis

Here, Plaintiff's complaint arises from allegations of misconduct regarding Alcumbrac's official actions in conduct of litigation in Crupi v. USC et al. (See

May 1, 2026, Order.) Accordingly, the Court granted Alcumbrac's anti-SLAPP motion on May 4, 2026. (Ibid.) Alcumbrac is therefore entitled to attorney's fees and costs pursuant to CCP § 425.16(c)(1).

Alcumbrac

seeks attorney's fees in the total amount of \$38,760. (See Motion at 3:3-11.) Notably, Plaintiff's complaint was extensive, involving 23 causes of action. (See generally Complaint.) Anti-SLAPP motions are "complex and time consuming." (Ketchhum, *supra*, at 1139.) Here, Plaintiff's counsel states that her reasonably hourly rate is \$850. (Stone Decl. ¶ 7.) Counsel has been practicing law since 1983. (Ibid.) Counsel also provides a table of billing entries as Exhibit 2 to her declaration. (Id. at Exh. 2.) These entries show 45.6 hours expended. (Ibid.)

Given

Plaintiff's extensive complaint, supplemental declarations, and objections, imbuing Alcumbrac with hundreds of pages to review and analyze, the Court finds this amount reasonable. The Court also finds the hourly rate reasonable.

III. Conclusion

Based on the foregoing, the Court GRANTS Alcumbrac's motion for attorney's fees. Attorney's fees are awarded for Alcumbrac and defense counsel and against Plaintiff in the total amount \$38,760.

Alcumbrac to give notice.